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JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

R.F.A.No.65083 of 2022

Mst. Nishat Mummunka
Versus
Safdar Raza

J U D G M E N T

Date of Hearing: 19.04.2024

Appellant by: Sardar Haider Tahir, Advocate

Respondent by: Chaudhry Zulfiqar Ismail, Advocate

SHAHID BILAL HASSAN, J.

C.M.No.2 of 2022 & Main Appeal

Through this application under section 5 of the Limitation Act, 1908, the applicant/appellant seeks condonation of delay in filing the captioned appeal on the ground that due to unavoidable circumstances, the appeal could not filed within time; that the delay is not deliberate and intentional; therefore, by allowing the application in hand, the delay in filing the appeal may be condoned.

2. On the contrary, learned counsel for the respondent has opposed the application in hand and has prayed for dismissal of the same as well as appeal being barred by limitation.

3. Heard.

4. Limitation Act is not mere a technicality rather the same operates as substantive law and if no time constraints and limits are prescribed for pursuing a cause of action and for seeking reliefs/remedies relating to such cause of action, and a person is allowed to sue for the redressal of his grievance within an infinite and unlimited time period, it shall adversely affect the disciplined and structured judicial process and mechanism of the State, which is sine qua non for any State to perform its functions within the parameters of the Constitution and the rule of law, as has been elaborated the discussed in judgment reported as *Dr. Muhammad Javaid Shafi v. Syed Rashid Arshad and others* **(PLD 2015 Supreme Court 212)**. Further in judgment reported as *United Bank Limited and others v. Noor-Un-Nisa and others* **(2015 SCMR 380)**, the Supreme Court of Pakistan has held that:-

> *'Under section 3 of the Limitation Act, 1908, it is the bounden duty of every Court of law to take notice of the question of limitation even if not raised in defence by the other contesting party(s).'*

Earlier to the above the Supreme Court of Pakistan dealt with the same proposition in *Lahore Development Authority v. Mst. Sharifan Bibi and*

another **(PLD 2010 Supreme Court 705)** and *Sardar Anwar Ali Khan and 10 others v. Sardar Baqir Ali through Legal Heirs and 4 others* **(1992 SCMR 2435)**.

In this backdrop it is observed that the Limitation Act is a substantive law and after lapse of prescribed period provided under law for challenging any order passed against a person and in favour of other valuable right accrues in favour of the opposite party in whose favour an order or judgment is passed and the party aggrieved has to explain delay of each and every day showing sufficient cause.

5. In the instant case, the appeal preferred by the appellant is barred by limitation because the judgment and decree was passed on 04.05.2021 whereas the appellant has agitated the same on 13.10.2022, upon which objection was raised and the same was resubmitted on 19.10.2022 and no plausible explanation was submitted rather only ground of unavoidable circumstances has been taken. In a judgment reported as *Imtiaz Ali Atta Muhammad and another* **(PLD 2008 Supreme Court 461)**, it was held by Supreme Court of Pakistan that, *'the appeal having been filed after one day of the period of limitation had created valuable right in favour of respondents.'*

6. Moreover, the appellant could not furnish the surety bond as ordered by the learned trial Court at the time of accepting the application for leave to appear and defend the suit on 19.03.2022, therefore, vide order dated 09.05.2022, the application for leave to appear and defend was dismissed due to non-submission of surety bond and ultimately vide order dated 14.09.2022, while rectifying the order dated 09.05.2022, the suit was dismissed by the learned trial Court. It is observed that as the order for accepting the application of the appellant for leave to appear and defend the suit was recalled, the ultimate result would be revival of the ante status i.e. ex parte judgment and decree dated 04.05.2021. Therefore, the learned trial Court has rightly passed the impugned order dated 14.09.2022, which does not need any interference by this Court at this stage.

7. In view of the above, the application as well as captioned appeal having no force and substance stands dismissed. No order as to the costs.

(Shahid Bilal Hassan)
Judge

Approved for reporting.

Judge

M.A. Hassan